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Our Ref:

Your Ref:

27th October, 2023

The Group Managing Director
Ikeja Hotel Plc
84, Opebi Road
Ikeja, Lagos State

Dear Sir,
RE: UPDATE ON IKEJA HOTEL PLC LITIGATION MATTERS

Please find attached the status report as at 27th October 2023 in respect of the pending court suits being handled by our firm on behalf of your company.

Yours faithfully,
for: **G.M. IBRU & CO.**

G. M. IBRU & CO.
BARRISTERS & SOLICITORS

Ugochukwu N. Onyinyechi, Esq.

Original Copy
by me Uriel
30/10/2023
8:58 am

UPDATE ON IKEJA HOTEL PLC LITIGATION MATTERS AS AT 27th OCTOBER, 2023

S/N	SUIT NO./PARTIES	STATUS/REMARKS
1.	**SUIT NO. ID/1146/2006 PATIENCE URHOBO & ANOR. V. GOVERNOR OF LAGOS STATE & ORS.**	**The matter came up on the 19th of May but it was for further proceedings, The matter could not go on as claimant counsel was not prepared. The matter came up on the 6th of October 2023. We responded to the Claimant's amended process through our consequential amendment and the Court adjourned to the 12th, 14th and 15th of December 2023 for trial.** The Claimants in the above suit are challenging the revocation of the title to the land belonging to the 3rd Defendant (Charles Hampton Co. Ltd.) same of which measures approximately 51.494 hectares. On the 7th of December, 2021 pursuant to the 3rd Defendant's Motion for Interlocutory Injunction, the honourable court delivered a ruling restraining the Governor of Lagos State from acting on the second revocation of the 3rd Defendant's title to the land in dispute. The court also made a further Order mandating the ACR Litigation to carry out the pasting of the said Order on the property. The order was executed on 2nd March, 2022.
2.	**SUIT NO.: ID/ADR/2098/2022 – IMONIYAME HOLDINGS LIMITED v. CHARLES HAMPTON & CO. LTD AND IKEJA HOTELS LTD**	**The matter has been sent back to the trial court and it has been assigned to Justice A.M Lawal's Court. Based on the mediation report dated 18th 2023, the mediation was closed and the case file is to be sent to the head of fast track so that same can be transferred for trial. The matter has been sent to the fast-track office to be assigned to a trial judge.** In this suit, the Claimant's claim is for the purchase price of a piece of land along with other reliefs. The Claimant claims the sum of ₦325,480,000.00 as the purchase price of the said parcel of land and all related expenses in the form of professional fees to various entities. It also claims interest in the stated sum. We have filed defence on behalf of the Defendants, including Ikeja Hotel Plc, in the matter. On 1st

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		December 2022, the honourable court heard and granted the Defendants' application to regularize their defence. Consequently, the Claimant withdrew its motion for final judgment. The court has referred the matter to mediation. We are awaiting a hearing notice in that regard.
3.	**NICN/LA/529/2019 - MR EMMANUEL UCHE NESIAYALI V. IKEJA HOTEL PLC & ORS.**	**We have a pending application for an additional witness (it has been filed). The existing cross-examination questions will be reviewed to suit the testimony of Madam Funmi. We have filed our motion for additional witness statement on Oath The matter came up on the 24th of October 2023 for Continuation of Trial, and the Court adjourned to the 15th of April 2023 for us to move our motions and continuation of trial** The Claimant is praying the court for a declaration that the Claimant is entitled to the payment of his salary arrears and gratuity/terminal benefits by the Defendants, jointly and/or severally N400,950.00 being arrears of salary, N4,785,429.60 being gratuity and benefits accrued from 2nd May 2001 to 15th October 2015 N5,000,000.00 being the cost of this action. The matter came up on the 10th October 2022 for further hearing but the court did not sit. The suit was further adjourned to the 10th of April, 2023 for continuation of trial, but the court did not sit due to the Easter vacation. We are following up with the court for the next date.
4.	**SUIT NO.: ID/4135/14 - MR. REMI AJOSE ADEOGUN & ORS. V. PERSONS UNKNOWN, IKEJA HOTEL PLC. AND ANOR**	The Claimants in this suit commenced an action at the High Court via originating summons for recovery of possession of some parcels of land located at Onigbongbo Ikeja, Lagos which they alleged were being occupied by persons unknown. The Claimants alleged that one of the parcels of land subject matter of dispute in this suit forms part of the land at the Opebi Gorge. Ikeja Hotel Plc. and Charles Hampton and Co. Ltd. brought an application for joinder as parties to the suit which was granted by the court. The matter came up again during the settlement week on 26th July 2019 and the 1st Claimant for and on behalf of himself and the Claimants in the suit signified their interest to discontinue the suit against the 2nd Defendant (Ikeja Hotel Plc.) and 3rd Defendant (Charles Hampton & Co. Ltd). Then a draft of the

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		terms of settlement was drawn up and the matter was adjourned to 29th July 2019 for the party to sign the terms. The suit came up for execution of terms of settlement at the Lagos State Multi-door Court House, and the said terms were signed by the parties. The case file will be transferred to the trial judge who will give a date for adoption of the terms by parties. The Court will notify the parties of the date for adoption. We are following up with the court to get the date for adoption.
5.	**NICN/LA/503/2018 - MR. NURUDEEN O. DAWODU V. IKEJA HOTEL PLC & ORS.**	**The matter came up on the 12th of October 2023.The court granted the 1st and 3rd Defendants' Motion dated 12th September 2023. The Court adjourned to 22nd November 2023 the cross-examination of DW3 and the conclusion of the defence.** The Claimant, who alleged to have been employed by the 2nd Defendant and worked for the pleasure of all the Defendants in this suit, is claiming terminal benefits as a former employee of the Defendants. The matter came up for trial on the 16th of March 2023 for trial and CW2 was cross-examined. It was adjourned to 14th June 2023 and 21st June 2023 for the Defence to open their case.
6.	**CA/L/1046M/18 - MOMOH NASIR V. IKEJA HOTELS PLC.**	The Claimant/Appellant alleges that he was prevented from entering the premises of his employers to work during the pendency of his contract of employment. The trial court delivered judgment in favour of the Claimant granting the Claimant one month's salary in lieu of notice which is in the sum of N18,938.99 and cost of N25,000.00, not the N4,900,000.00 claimed as per Writ of Summons.

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